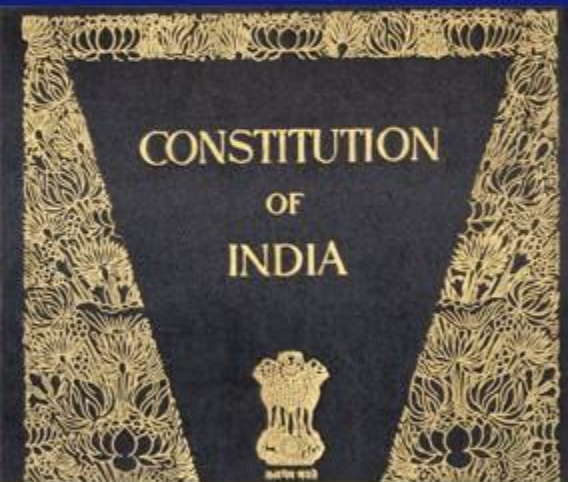


INDIAN POLITY



MODULE - 19

UNION & ITS TERRITORY

- ARTICLE 1- TERRITORY OF INDIA VS UNION OF INDIA
- ARTICLE 2 VS ARTICLE 3

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES



1

According to the Article 1, the territory of India can be classified into three categories:

- 1) Territories of the States
- 2) Union Territories
- 3) Territories that may be acquired by the Government of India at any time

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES

2 The names of the States and Union Territories and their territorial extent are mentioned in the **First schedule of the constitution**.

3 At present, there are 29 States and 7 Union Territories.

4 The provisions of the Constitution pertaining to the States are applicable to all the States(except Jammu and Kashmir) in the same manner.

5 However, the special provisions (under Part XXI) applicable to the States of Maharashtra, Gujarat, Nagaland, Assam Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, and Karnataka override the general provisions relating to the States as a class.

6 Further, the **fifth and Sixth Schedules** contain separate provisions with respect to the administration of scheduled areas and tribal areas within the States.

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES



7 Notably the 'Territory of India' is a wider expression than the 'Union of India' because the latter includes only States while the former includes not only the States, but also Union Territories and territories that may be acquired by the Government of India at any future time.

8 The States are the members of the federal system and share a distribution of powers with the Centre.

9 The Union territories and the acquired territories, on the other hand, are directly administered by the Central Government.

INDIAN POLITY

UNION AND ITS TERRITORY

UNION OF STATES



10 Being a sovereign state, India can acquire foreign territories according to the modes recognized by international law i.e., cession (following treaty, purchase, gift, lease or plebiscite), occupation, conquest or subjugation.

11 For example, India acquired several foreign territories such as Dadra and Nagar Haveli, Goa, Daman and Diu, Pondicherry, and Sikkim since the commencement of the Constitution.

INDIAN POLITY

UNION AND ITS TERRITORY

TERRITORY OF INDIA VS UNION OF INDIA

1 The expression “Union of India” should be distinguished from the expression “Territory of India”, while the Union includes only the States, which enjoys the status of being members of the federal system.

2 The “Territory of India” includes entire territorial extent over which the Sovereignty of India extends, thus, the phrase the Territory of India includes besides the States, Union Territories and such other territories as acquired by India.

UNION AND ITS TERRITORY

TERRITORY OF INDIA VS UNION OF INDIA

- 3** The Union Territories are seven in number –
- 1) Delhi,
 - 2) Andaman and Nicobar Islands
 - 3) Lakshadweep
 - 4) Dadra and Nagar Haveli
 - 5) Daman and Diu
 - 6) Pondicherry and
 - 7) Chandigarh

- 4** For the Union Territory of Pondicherry the Parliament has enacted the Pondicherry Administration Act, 1962, under Article 239 A and by this Article it has provided for a legislature in the Union Territory of Pondicherry.

- 5** By an amendment to the Constitution two new Articles-239 AA and 239 AB were in 1992, providing for Legislature and a Ministry for Delhi, which has been named as National Capital Territory of Delhi by Article 239 AA.

INDIAN POLITY

UNION AND ITS TERRITORY

TERRITORY OF INDIA VS UNION OF INDIA

6 Rest of the Union Territories are Centrally Administered areas to be governed by the President, acting through an administrator appointed by him and issuing regulations for their good governance.

7 Any territory which may be acquired by India- by treaty or conquest- will obviously form the part of the territory of India.

8 This is how the French settlement of Pondicherry (together with Karaikal, Mahe and Yanam) was ceded to India by the French Government.

9 This was initially treated as an acquired territory and then after the ratification of the treaty by both the governments, it has been constituted as a Union Territory from December 1962.

UNION AND ITS TERRITORY

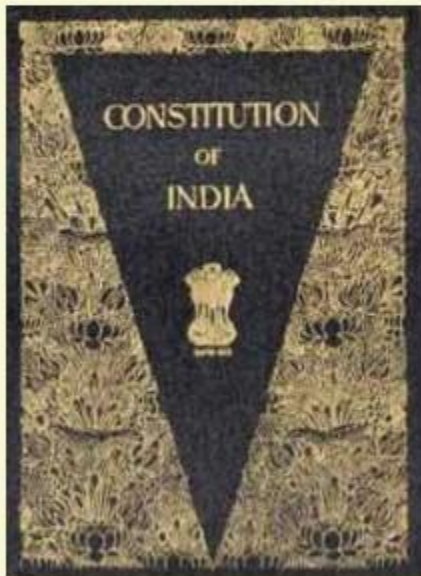
ARTICLE 2- ADMISSION OF NEW STATES

- 1** Article 2 empowers the Parliament to 'admit into the Union of India, or establish new States on such terms and conditions as it thinks fit'.
- 2** Thus, Article 2 grants two powers to the Parliament
 - a) The power to admit into the Union of India new states and
 - b) The power to establish new States.
- 3** The first refers to admission of the States which are already in existence while the second refers to the establishment of States which were not in existence before.
- 4** Notably, Article 2 relates to the admission or establishment of new States that are not part of the Union of India.

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE 2- ADMISSION OF NEW STATES



5 Article 3 on the other hand relates to the formation of or changes on the existing States of the Union of India.

6 In other words, Article 3 deals with the internal re-adjustment inter se of the territories of the constituent states of the Union of India.

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



- 1** Article 3 authorizes the Parliament to:
- a) Form a new State by separation of territory from any State or by uniting two or more States or parts of the States or by uniting any territory to a part of any State.
 - b) Increase the area of any State,
 - c) Diminish the area of any State,
 - d) Alter the boundaries of any State and
 - e) Alter the name of any State.

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



2

However, Article 3 lays down two conditions in this regard:

1. A Bill contemplating the above changes can be introduced in the Parliament **only with the prior recommendation of the President.**
2. Before recommending the Bill, the President has to refer the same to the **State legislature** concerned for **expressing its views within a specified period.**

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



3 The President (or Parliament) is **not bound** by the **views of the State legislature** and may either accept or reject them, even if the views are received in time.

4 Further, it is not necessary to make a fresh reference to the State legislature every time an **amendment to the bill moved and accepted in Parliament**.

5 In case of Union Territory, **no reference need be made to the concerned legislature** to ascertain its views and the Parliament can itself take any action as it deems fit.

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

6 It is thus clear that the Constitution authorizes the Parliament to form new States or alter the areas, boundaries or names of the existing States without their consent.

7 In other words, **the Parliament can redraw the political map of India according to its will.**

8 Hence, the territorial integrity or continued existence of any State is not guaranteed by the Constitution. Therefore, **India is rightly described as indestructible union of destructible States.**

9 The Union Government can destroy the states whereas the State Governments cannot destroy the Union.

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

10 In USA, on the other hand, the territorial integrity or continued existence of a State is guaranteed by the Constitution.

11 The American federal Government **cannot form new States or alter the borders of the existing States without consent to the States concerned.**

12 That is why the USA is described as **“an indestructible union of indestructible States”.**

13 Moreover, the Constitution (article 4) itself declares that laws made for admission or establishment of new States (under Article 2) and alteration of areas, boundaries or names of existing States (under Articles 3) **are not to be considered as the amendments of the Constitution under Article 368.**

14 Any law referred to in Articles 2 and 3 shall contain such provisions for **the amendment of the 1st and 4th Schedule** as may be necessary.

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